22-2-01596-3
AMCPT 4
Amended Complaint
13975569

SCANNED 8

FILED
COUNTY CLERK
2023 FEB 16 PM 3:17
COUNTY
WASHINGTON

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON IN AND FOR THE COUNTY OF WHATCOM

MICHAEL SCANLON and JONATHAN WEISS, Individuals
Plaintiffs,

vs.

THE CITY OF BELLINGHAM POLICE DEPARTMENT and THE THE CITY OF BELLINGHAM and JOHN and JANE 1-10
Defendants.

No. 22-2-01596-37

AMENDED COMPLAINT FOR DAMAGES

INTRODUCTION

1. The State of Washington has mandated, by Proclamation of the Governor 21-14.1 et seq. "the proclamation", SARS-CoV2 (COVID-19) vaccinations for all persons employed by State agencies on or before October 18, 2021. The Mayor of the City of Bellingham (the City) also issued an Executive Order requiring all City employees to be vaccinated. The City employees

employees were instructed to submit a request for accommodation, and the Plaintiffs did submit such a request. Michael Scanlon and Jonathan Weiss (Plaintiffs) were police officers employed by the Bellingham Police Department (BPD). The Plaintiffs applied for religious exemptions from the vaccine due to their sincerely held religious beliefs. No meetings were held to determine if an accommodation for people of faith who held sincere religious convictions against ingesting the COVID-19 vaccines were made. These actions show a premeditated determination to deny accommodations and a failure on the part of the City to afford employees of faith an interactive accommodation process. Plaintiffs seeks redress for this violation of law.

2. The Plaintiffs seek relief in the form of declaratory relief and damages against Defendants, and all those in active concert, from abridging Plaintiffs' statutorily protected rights guaranteed to them by Title VII 42 USC §2000(e) and Washington Law Against Discrimination RCW 49.60.030 et. seq.

3. Plaintiffs also ask this Court for *de novo* review of the accommodation process and the failure of the City to actively engage therein.

JURISDICTION AND VENUE

4. This Court has jurisdiction over this action pursuant to the Revised Code of Washington 2.08.010

5. Plaintiffs' claims for declaratory relief are authorized by RCW §7.24.010, Civil Rules 57 and 65, and the general legal and equitable powers of this Court, which empower this Court to grant the requested relief.

6. Venue is proper within this judicial district and division, pursuant to RCW §4.12.025, because the defendant, the City of Bellingham carrying out the business in the State and acting under

color of law at headquarters located in Bellingham, Whatcom County.

7. This court has supplemental jurisdiction over federal claims under 42 U.S.C. §2000e.

PARTIES

8. Plaintiffs Michael Scanlon and Jonathan Weiss submitted a request for a religious exemption and was exempted, but were not give a reasonable accommodation.

9. The City is charged by Proclamation 21-14 et seq and Executive Order 2021-2 et. Seq., with requiring all of its employees to be vaccinated or to submit a religious/medical exemption. BPD was the employer of both of the Plaintiffs in this case.

10. The true names and capacities, whether individual, corporate, associate, or otherwise, of Does 1 through 10, inclusive, are unknown to Plaintiffs at this time, who therefore sues said Defendants by such fictitious names. Plaintiffs believe and allege that each of the fictitiously named Defendants are in some way responsible for, or participated in, or contributed to, the matters and things complained of herein, and are legally responsible in some manner. Plaintiffs will seek leave to amend this Complaint when the true names, capacities, participation, and responsibilities have been ascertained.

11. Plaintiffs are informed and believe, and thereon allege, that at all times herein mentioned the Defendants acted to discriminate and deprive them of their right to fair treatment and due process; in so doing, the things hereinafter complained of, the Defendants were acting within the course and scope of such agency and/or employment, and with the knowledge and consent of the remaining Defendants.

FACTS

23. On or about August 9, 2021, the Governor of Washington, Jay Inslee, issued Proclamation 21-14 et seq. requiring all state employees to obtain vaccination against the COVID-19 virus.

24. Proclamation 21-14 et seq. requires all State Agencies to direct their employees to subject themselves to a COVID-19 vaccination or face termination from their employment.

25. Proclamation 21-14 et seq. allows for religious accommodations under Title VII, 42 U.S.C. 2000e.

26. In response to the Governor's Proclamation, on September 21, 2021, Seth Fleetwood, the Mayor of the City, issued Executive order 2021-02 mandating that, "All City employees are required to be fully vaccinated against the COVID-19 virus as a condition of employment no later than December 3, 2021." In the same Executive Order, Mayor Fleetwood states, "Employees seeking reasonable accommodations for legitimate medical reasons or sincerely held religious beliefs may apply for an accommodation no later than close of business on October 15, 2021."

27. Plaintiff Michael Scanlon, who was a Sergeant on the BPD and Johnathan Weiss, who was a Detective for the BPD, applied for a religious exemption in a timely manner stating that they had sincerely held religious beliefs and convictions that prevented them from taking the COVID-19 vaccination.

28. In a letter dated November 2, 2021, the City accepted Mr. Scanlon's sincerely held religious beliefs against the COVID-19 vaccination but they denied Mr. Scanlon's request for a reasonable accommodation. Even though the measures requested by Mr. Scanlon were the same measures the City was using before and after the mandate went into affect.

29. Mr. Scanlon was terminated from his job of more than 28 years on December 6, 2021 in violation of his religious and civil rights that he asserted under Title VII of the 1964 Civil Rights Act and under the Washington Law against Discrimination. 49.60.030 et. seq.

30. In a letter dated October 20, 2021, the City accepted that Mr. Weiss' had sincerely held religious beliefs against the COVID-19 vaccination but they denied Mr. Weiss' request for a reasonable accommodation. However, the City granted a medical exemption of a fellow detective that was a co-worker with Mr. Weiss.

31. As a result of the denial of the request for a religious accommodation under Title VII, the Plaintiffs have been terminated from their employment with BPD. This constitutes an adverse employment action, and comes on the heels of the Plaintiffs asserting their protected rights as a members of a protected class.

32. Mr. Scanlon and Mr. Wiess received their right to sue letters from the Equal Employment Opportunity Commission on September 19, 2022 and September 30, 2022, respectively.

33. Mr. Scanlon and Mr. Wiess also filed a claim for damages form with the City on or about December 1, 2022. It has been more than 60 days since this claim for damages form was received and the City denied the claims on or about December 28, 2022. Therefore the plaintiffs have complied with RCW 4.96.020.

FIRST CAUSE OF ACTION

Violation of Title VII of the 1964 Civil Rights Act, 42 USC §2000e Against Defendants forFailure to Accommodate

34. Plaintiffs re-allege the facts above and incorporate those herein by reference as if fully alleged.

35. By submitting a request for religious accommodation under Title VII, the Plaintiffs engaged in actions protected by federal law.

36. Plaintiffs apprised the Defendants of their sincerely held religious beliefs and were exempted from the COVID-19 vaccine requirement.

37. The Defendants subjected the Plaintiffs to adverse employment action and the Plaintiffs lost their jobs due to their sincerely held religious beliefs.

38. The Defendants refused to entertain requests for religious accommodations under Title VII and engage in a meaningful analysis of the requested accommodations.

39. Wherefore, Plaintiffs bring this claim under 42 U.S.C. § 2000(e) and requests the relief set forth below in the prayer for relief.

SECOND CAUSE OF ACTION:

Violation of State Law Prohibiting Religious Discrimination

[RCW 49.60.030 *et seq.*]

40. Plaintiffs refers to and hereby incorporates the foregoing paragraphs as though fully set forth herein.

41. Like Title VII, the Washington Law Against Discrimination ("WLAD"), codified at RCW 49.60.030 *et seq.*, prohibits employers from discharging individuals from employment on the basis of religion.

42. Because Washington's state law prohibiting employers from discriminating on the basis of religion is modeled after Title VII, and because the analysis for religious discrimination claims

under both statutes is identical, Plaintiffs decline to restate the facts as set forth in their first cause of action, as those facts are already incorporated as though fully set forth herein.

43. Under 42 U.S.C. § 2000e-7, nothing in 42 U.S.C. § 1981a(b)(3), which caps the amount of non-pecuniary and punitive damages that can be awarded to Plaintiffs, "shall be deemed to exempt or relieve any person from liability, duty, penalty, or punishment provided by any present or future law of any State[.]" In other words, a Washington jury is free to exceed any applicable federal dollar limit in accordance with Washington law.

44. As stated *supra*, Plaintiffs have endured mental suffering and emotional distress due to the discriminatory treatment he has suffered at the hands of Defendants.

45. Based on the foregoing, in addition to violating Title VII, Defendants have violated the WLAD.

PRAYER FOR RELIEF

Wherefore, Plaintiffs request that the Court enter judgment in their favor, and against the Defendants, for full relief, including the following:

1. Damages including lost wages, benefits, and all other lost income stemming from the discriminatory actions of Defendants.
2. Attorney's fees and costs; and,
3. Declaratory relief that the City and the BPD, failed to implement policies and procedures that encouraged engaging in a meaningful analysis of what accommodations may be made for those protected by Title VII when asserting their sincerely held religious beliefs against being vaccinated; in so doing the City and the BPD denied the Plaintiffs of their rights and entitlements at law.

4. Declaratory relief that the accommodation process failed to meet the minimum standards required at law under *De Novo* review.

5. Enter a judgment that the acts and practices of the Defendants complained of herein are in violation of state law and/or common law;

6. Award the Plaintiffs compensation for all present, and future lost wages; including without limitation and any other relief this Court deems necessary;

7. Award the Plaintiffs the costs of this action, including the fees and costs of experts, together with reasonable attorney's fees.

8. Award the Plaintiffs total general and special damages in an amount to be proven at the time of trial.

9. Grant the Plaintiffs such additional and further relief as this Court deems necessary, just, and equitable.

Respectfully Submitted this 14th day of February, 2023.

/s/Harold H. Franklin, Jr.
WSBA #20486
Tracy Tribbett
WSBA #35922
Pacific Justice Institute
Attorneys for the Plaintiffs
459 Seneca Avenue NW
Renton, WA 98057
hfranklin@pji.org
(206)617-7031

22-2-01596-37
AFSR 6
Affidavit Declaration Certificate Confirmation of
14098493

COUNTY CLERK
2023 MAR -8 AM 11:13
WHATCOM COUNTY
WASHINGTON

SCANNED

THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF WHATCOM

MICHAEL SCANLON and JONATHAN WEISS, Plaintiffs, vs. CITY OF BELLINGHAM POLICE DEPARTMENT, CITY OF BELLINGHAM, and JOHN and JANE DOE 1-10, Defendants.	**NO.** 22-2-01596-37 **DECLARATION OF SERVICE** Judge Lee Grochmal

I declare under the penalty of perjury under the laws of the State of Washington that the following is true and correct:

I am a citizen of the United States and a resident of the State of Washington. I am over 18 years of age and not a party to this action. I am an employee of the City of Bellingham. My employment address is 210 Lottie Street, Bellingham, Washington 98225.

City of Bellingham
CITY ATTORNEY
210 Lottie Street
Bellingham, Washington 98225

On March 8th, 2023, I served a true and correct copy of the following documents to be delivered as set forth below:

1. **Notice of Appearance**
2. **Declaration of Service**

Mr. Harold Hudson Franklin, Jr. Ms. Tracy Tribett Pacific Justice Institute 459 Seneca Avenue, NW Renton, WA 98057 (206) 617-7031 Hfranlikin1@PJI.org tribbettesquire@gmail.com	[X] By United States Mail [ ] By Facsimile [ ] Hand Delivery [X] Email

DATED this 8th day of March, 2023, in Bellingham, Washington.

CITY OF BELLINGHAM



Julie A. Steele
Paralegal

City of Bellingham
CITY ATTORNEY
210 Lottie Street
Bellingham, Washington 98225
Telephone (360) 778-8270

22-2-01596-37
NTAPR 5
Notice of Appearance
14098486

2023 MAR -8 AM 11:13

WHATCOM COUNTY
WASHINGTON

SCANNED

THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF WHATCOM

MICHAEL SCANLON and JONATHAN WEISS, Plaintiffs, vs. CITY OF BELLINGHAM POLICE DEPARTMENT, CITY OF BELLINGHAM, and JOHN and JANE DOE 1-10, Defendants.	**NO.** 22-2-01596-37 **NOTICE OF APPEARANCE** Judge Lee Grochmal

TO: Clerk of the Court

AND TO: Harold Hudson Franklin, Jr. and Tracy Tribbett, Plaintiffs' Attorneys

YOU AND EACH OF YOU are hereby notified that the CITY OF BELLINGHAM, without waiving service of process and other jurisdictional defenses, appears in the above-titled action by the undersigned attorneys and request that all pleadings and papers of any nature filed or used in said action shall first be served upon

City of Bellingham
CITY ATTORNEY
210 Lottie Street
Bellingham, Washington 98225
Telephone (360) 778-8270

the undersigned attorneys at the address below stated, reserving the time provided by statute or court rules within which to plead further.

Respectfully submitted this 8th day of March, 2023.

CITY OF BELLINGHAM

Sarah W. Chaplin, WSBA #51642
Sr. Assistant City Attorney

CITY OF BELLINGHAM

Michael E. Good, WSBA #44857
Sr. Assistant City Attorney

City of Bellingham
CITY ATTORNEY
210 Lottie Street
Bellingham, Washington 98225
Telephone (360) 778-8270

22-2-01596-37
AFSR 7
Affidavit Declaration Certificate Confirmation of
4128005

SCANNED

FILED
COUNTY CLERK
2023 MAR 13 PM 2:20
WHATCOM COUNTY
WASHINGTON

SUPERIOR COURT FOR THE STATE OF WASHINGTON IN AND FOR WHATCOM COUNTY

Plaintiff / Petitioner: MICHAEL SCANLON AND JONATHAN WEISS, INDIVIDUALS	**Case No:** 22-2-01596-37
Defendant / Respondent: THE CITY OF BELLINGHAM POLICE DEPARTMENT AND THE THE CITY OF BELLINGHAM AND JOHN AND JANE 1-10	**DECLARATION OF SERVICE**

The undersigned, being first duly sworn on oath deposes and says: That he/she is now and at all times herein mentioned was a citizen of the United States, over the age of eighteen years, not a party to or interested in the above-entitled action and competent to be a witness therein.

That on Mon, Mar 06 2023 at 12:43 PM, at the address of 210 LOTTIE ST, within BELLINGHAM, WA, the undersigned duly served the following document(s): SUMMONS; COMPLAINT in the above-entitled action upon CITY OF BELLINGHAM, CITY CLERK, by then and there, at the usual place of business of said person(s), personally delivering true and correct copy(ies) of the above documents into the hands of and leaving same with Brooksana Ramey, Executive Assistant for CITY OF BELLINGHAM, CITY CLERK.

Additional Comments:
1) Successful Attempt: Mar 6, 2023, 12:43 pm PST at 210 LOTTIE ST, BELLINGHAM, WA 98225 received by for Brooksana Ramey, Executive Assistant for CITY OF BELLINGHAM, CITY CLERK.
She is a white female, about 55yo, grey brown hair, 5'2", 140lbs

I declare under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct:

Date: March 6th, 2023 , Whatcom County, WA.

Serge A. Samoylenko, Whatcom Co. Process Server Reg # 298-3721

GreyhoundLegal.com
9508 Front St S
Lakewood, WA 98499
(253) 230-9675

22-2-01596-37
AFSR 9
Affidavit Declaration Certificate Confirmation of
14148640

2022 MAR 16 AM 8:49

WHATCOM COUNTY
WASHINGTON

THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF WHATCOM

MICHAEL SCANLON and JONATHAN WEISS, Plaintiffs, vs. CITY OF BELLINGHAM POLICE DEPARTMENT, CITY OF BELLINGHAM, and JOHN and JANE DOE 1-10, Defendants.	**NO.** 22-2-01596-37 **DECLARATION OF SERVICE** Judge Lee Grochmal

I declare under the penalty of perjury under the laws of the State of Washington that the following is true and correct:

I am a citizen of the United States and a resident of the State of Washington. I am over 18 years of age and not a party to this action. I am an employee of the City of Bellingham. My employment address is 210 Lottie Street, Bellingham, Washington 98225.

City of Bellingham
CITY ATTORNEY
210 Lottie Street
Bellingham, Washington 98225
Telephone (360) 778-8270

On March 16, 2023, I served a true and correct copy of the following documents to be delivered as set forth below:

1. **City of Bellingham's and Bellingham Police Department's Answer to Complaint for Damages**
2. **Declaration of Service**

Mr. Harold Hudson Franklin, Jr. Ms. Tracy Tribett Pacific Justice Institute 459 Seneca Avenue, NW Renton, WA 98057 (206) 617-7031 Hfranlikin1@PJI.org tribbettesquire@gmail.com	[X] By United States Mail [ ] By Facsimile [ ] Hand Delivery [X] Email

DATED this 16th day of March, 2023, in Bellingham, Washington.

CITY OF BELLINGHAM

Julie A. Steele
Paralegal

City of Bellingham
CITY ATTORNEY
210 Lottie Street
Bellingham, Washington 98225